

25STLC09559 25STLC09559

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-09

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C25%2C07%2F09%2F2026

Source SHA-256: 7a17602b65531e811905bb94b217ceab22f7ef4f3fe1c2c1d99b110d4c2eb8ab

Case Number: 25STLC09559 Hearing Date: July 9, 2026 Dept: 25

HEARING DATE: Thurs., July 9, 2026 JUDGE/DEPT: Eisenman/25

CASE NAME: State

Farm Mutual Automobile Insurance Company v. Montesmoreno, et al.

COMP FILED: 12-29-25

CASE NUMBER: 25STLC09559

NOTICE: OK

PROCEEDINGS: MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED

MOVING PARTY:

Plaintiff State Farm Mutual

Automobile Insurance Company

RESP. PARTY: None

MOTION TO DEEM REQUESTS FOR ADMISSION

ADMITTED; REQUEST FOR SANCTIONS

(CCP § 2033.280)

TENTATIVE RULING:

The Court GRANTS State

Farm Mutual Automobile Insurance Company's motion to deem matters admitted. The contents of State Farm's first set of

requests for admission are deemed admitted.

Juan Montesmoreno must pay

State Farm \$460.00 within 30 days of this order.

State Farm is to give

notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of July 6, 2026 ☐

Late ☒ None

REPLY: None

filed as of July 6, 2026 ☐

Late ☒ None

ANALYSIS:

State Farm Mutual Automobile Insurance Company filed this subrogation action against Juan Montesmoreno and Jennifer Hernandez. Hernandez defaulted and Montesmoreno answered. State Farm then propounded nine requests for admission on Montesmoreno.

A party must respond to requests for

admissions within 30 days after service of such requests. (Code Civ. Proc., § 2033.250, subd. (a).) If a party fails to do so, it waives the

right to object, and the propounding party may move for an order that the

genuineness of any documents and truth of any matters specified in the requests

be deemed admitted. (Id. §

2033.280, subd. (a), (b).)

State Farm served Montesmoreno with requests

for admission in March 2026. To date, no responses have been served. Montesmoreno has not filed an opposition indicating otherwise. Accordingly, the motion is GRANTED and State Farm's first set of requests for admission are deemed admitted.

Montesmoreno must also pay sanctions for causing State Farm to move to deem the requests admitted.

(Code Civ. Proc.,

§ 2033.280, subd. (c).) State Farm requests \$460.00—for two hours of

its counsel's work at \$200.00 per hour plus \$60.00 in filing fees—from Montesmoreno. The Court finds this request reasonable. Montesmoreno must pay State Farm \$460.00

within 30 days of this order.

State Farm is to give notice.